

amended pleading shall be filed within 30 days of receipt of notice of this order.

10. 9:00 AM CASE NUMBER: L24-04469

CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT (CONTINUED FROM 11.13.2025)**

FILED BY:

TENTATIVE RULING:

This matter is continued from a prior hearing. Before the prior hearing, the Court tentatively denied defendant's motion to set aside default. (That tentative ruling, dated November 12, 2025, is adopted by reference.) At oral argument, defendant raised additional authority indicating that the court had equitable discretion to set aside the default even in the absence of compliance with other statutory limitations. (*Rappleyea v. Campbell* (1984) 8 Cal.4th 975.) By order dated November 14, 2025, the court continued the hearing in order to give plaintiff an opportunity to address the *Rappleyea* case. (That order also is incorporated by reference. In supplemental briefing, plaintiff does not dispute that under *Rappleyea*, the Court has discretion to grant the motion under equitable principles. It does, however, dispute that the equitable factors exist in this case.

Considering the equitable factors, the Court finds that defendant had agreed to a settlement of the case, and had made payments under its terms, although he had not signed and executed the agreement. The correspondence, however, clearly stated that there was no agreement, even if payments were made, unless the stipulation was signed. In addition, defendant had served an answer to the complaint but had not filed it. He contends that he was "encouraged" by the published Local Rules to file his documents electronically, when in fact there were delays in processing that resulted in him not being advised that his General Denial was rejected until well after his default had been entered. But defendant did not submit his General Denial for filing until December 12, 2024, while the default was entered on December 6th. The fact that there was delay in rejecting the General Denial is not the reason he was in default. Nor does it explain all but 51 days of his delay in moving to set aside the default.

The motion to set aside the default is denied.

11. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE OF GENNA LAUREN PORTNER

FILED BY: SYNGENTA AG

TENTATIVE RULING:

Granted, subject to submission of proof of service on the State Bar.

12. 9:00 AM CASE NUMBER: MSC16-01118

CASE NAME: YUE VS. TRIGMAX SOLUTIONS

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSE TO SPECIAL INTERROGATORIES**

FILED BY: YUE, DONGXIAO

TENTATIVE RULING: